

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-21

PKDC, LLC,
Complainant,

v.

CMA CGM S.A.,
Respondent.

**COMPLAINANT’S MOTION FOR CONFIDENTIAL TREATMENT OF
DESIGNATED INFORMATION CONTAINED IN
COMPLAINANT’S OPENING BRIEF AND APPENDIX**

Pursuant to Rule 5 of the Federal Maritime Commission’s Rules of Practice and Procedure, 46 C.F.R. § 502.5, and paragraph 4(c) of the Protective Order entered by the Presiding Officer in this matter on February 7, 2025, Doc. No. 20, Complainant PKDC, LLC, moves for confidential treatment of information designated as confidential under the Protective Order contained in Complainant’s opening brief (including proposed findings of fact) and appendix (the “subject filings”).

At this time, Complainant does not believe that any of the information that it has included in the subject filings constitutes “a trade secret or other confidential research, development, or commercial information pursuant to § 502.141(j)(1)(vii),” 46 C.F.R. § 502.5(b); however, out of an abundance of caution, Complainant has (1) highlighted in its opening brief and proposed findings of fact direct quotes from documents that Respondent has designed as confidential pursuant to the Protective Order, and (2) marked with red boxes and otherwise denoted the

documents in the appendix that Respondent has designated as confidential pursuant to the Protective Order.

Respectfully submitted,

/s/ Luke Mathers

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Dated: May 26, 2026

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CERTIFICATE OF SERVICE

I certify that on May 26, 2026, the foregoing submission was served by electronic mail on all counsel of record, in accordance with 46 C.F.R. Part 502 and the Commission's Order of May 12, 2020, as follows:

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